

Stereo. H C J D A-38.
JUDGMENT SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Writ Petition No.51854 of 2024

Mst. Sosan Jaan & others

Versus

Additional District Judge, Lahore & others

J U D G M E N T

Date of hearing: 26.01.2026.

Petitioners by: Malik Abdul Munir Awan, Advocate.

Respondents by: Mr. Shahid Mehmood Chohan, Advocate for
respondent No.3.

MUHAMMAD SAJID MEHMOOD SETHI, J.: Through the instant constitutional petition under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973, the petitioners have assailed the order dated 11.04.2023, passed by the learned Judge Guardian-III, Lahore, and the appellate judgment dated 19.07.2024, passed by the learned Additional District Judge, Lahore, whereby the learned Courts below assumed territorial jurisdiction to entertain a guardian petition filed by respondent No.3 (maternal grandmother), notwithstanding an earlier ex parte guardianship order dated 05.01.2021, passed by the learned Senior Civil Judge/Guardian Judge, Mansehra (Khyber Pakhtunkhwa), in favour of petitioner No.1 (paternal grandmother).

2. Briefly stated, the minors are the offspring of late Naveed Hussain and late Sehrish Kanwal, who passed away in 2019 and 2020, respectively. After the demise of both parents, competing claims for guardianship were set up by the paternal and maternal grandmothers. Respondent No.3 instituted a petition under Section 7 of the Guardians and Wards Act, 1890 (**“the Act of 1890”**) at Lahore on 09.07.2020, asserting that after the death of the minors’

mother on 19.06.2020, the minors were residing with her at Lahore. In their written statement dated 06.11.2020, the paternal side alleged that custody had been voluntarily handed over to them on 23.07.2020. Shortly thereafter, petitioner No.1 filed a separate guardianship petition at Mansehra on 25.07.2020, which culminated in an ex parte order dated 05.01.2021 appointing her guardian of the person and property of the minors. An application under Section 12(2) CPC challenging the said order was later dismissed for non-prosecution on 12.09.2023.

3. In the meanwhile, respondent No.3 lodged FIR No.547/2020 dated 05.10.2020 under Section 363 PPC at Police Station Naulakha, Lahore, alleging abduction of the minors on 23.07.2020. During bail proceedings before this Court, interim custody of the minors was entrusted to respondent No.3 on 21.01.2021. The Lahore Guardian Court, having been apprised of parallel proceedings at Mansehra, initially sought guidance in terms of Section 14 of the Act vide order dated 04.12.2020 and kept the matter in abeyance. Upon receipt of the report, the proceedings were resumed through the impugned order dated 11.04.2023. The appeal preferred by the present petitioners was dismissed on 19.07.2024. Hence, this constitutional petition.

4. Learned counsel for the petitioners contends that once the order dated 05.01.2021 passed by the Guardian Judge, Mansehra attained finality, the proceedings at Lahore stood barred. It is argued that the learned Courts below erred in assuming jurisdiction merely on the basis of alleged present residence of the minors. Conversely, learned counsel for respondent No.3 supports the impugned decisions, maintaining that at the time of institution of the petition at Lahore, the minors were ordinarily residing at Lahore and that jurisdiction under Section 9 of the Act of 1890 is to be determined with reference to such ordinary residence. He further submits that the welfare of the minors, being the paramount consideration, lies in their continued custody with respondent No.3.

5. Arguments heard. Available record perused.
6. Section 9 of the Act of 1890 provides that a petition with respect to the guardianship of the person of a minor shall be made to the Court having jurisdiction in the place where the minor ordinarily resides. The expression “ordinarily resides” has consistently been interpreted to mean the minor’s settled and habitual abode, as distinguished from a casual, temporary or forcibly engineered stay. The determination of ordinary residence is essentially a question of fact to be gathered from the pleadings, conduct of parties and surrounding circumstances at the time of institution of proceedings. Reference may be made to Fahimuddin Khokhar v. Mst. Zaibunnisa (PLD 1968 Karachi 774), Malik Gul Raiz Awan v. Mst. Asma Gul Raiz Awan and 2 others (PLJ 2010 Lahore 17) and Faraz Alamgir v. Additional District and Sessions Judge VIII and 2 others (2017 YLR 994).
7. The record reveals that the guardian petition at Lahore was instituted on 09.07.2020 with a categorical assertion that the minors were residing there after the death of their mother on 19.06.2020. The alleged removal to Mansehra is stated to have occurred subsequently on 23.07.2020, which also formed the basis of criminal proceedings. Therefore, for purposes of Section 9, the relevant date for determining jurisdiction is the date of institution of the petition at Lahore. If, on that date, the minors were ordinarily residing at Lahore in a settled capacity, the subsequent removal, whether voluntary or otherwise, could not divest the Court at Lahore of jurisdiction already lawfully assumed. Reference can be made to Sh. Muhammad Rashid v. Mst. Zarnigar Qaiser Sheikh (PLD 1980 Lahore 61) and Aliya Farhan Rabbani and another v. Mirza Farhan Rabbani and another (2010 YLR 196).
8. Equally significant is Section 14 of the Act of 1890, which governs situations where simultaneous guardianship proceedings are instituted in more than one Court. The provision mandates that upon being apprised of parallel proceedings, the Court shall stay its

own proceedings and, where the Courts are subordinate to different High Courts, report the matter to the respective Provincial Governments for guidance. The Guardian Court at Lahore complied with this statutory obligation by seeking guidance and keeping the matter in abeyance. The Guardian Court at Mansehra, however, proceeded to decide the petition *ex parte* without staying proceedings or seeking requisite guidance. The requirement under Section 14, being mandatory in nature, was not observed. It is a settled principle of law that where a statute prescribes a particular mode for the exercise of power, it must be exercised in that manner and in no other. Non-compliance with a mandatory procedural safeguard that goes to the root of jurisdiction vitiates the resulting proceedings. In this regard, reliance may be placed upon Atta Muhammad Qureshi v. The Settlement Commissioner, Lahore Division, Lahore (PLD 1971 Supreme Court 61), Hakim Ali v. Muhammad Salim (1992 SCMR 46), Khyber Tractors (Pvt.) Ltd. v. Pakistan through Ministry of Finance (PLD 2005 Supreme Court 842), Zia-ur-Rehman v. Syed Ahmed Hussain (2014 SCMR 1015), Collector of Sales Tax, Gujranwala v. Messrs Super Asia Mohammad Din and Sons (2017 SCMR 1427), Ajmir Shah v. Inspector-General, Frontier Corps, Khyber Pakhtunkhwa and another (2020 SCMR 2129), Attaullah Khan v. Ali Azam Afridi and others (2021 SCMR 1979), Nadir Khan v. Qadir Hussain and others (2024 SCMR 770), Commissioner Inland Revenue, Large Taxpayers Office, Islamabad v. Pakistan Oilfields Limited and others (2024 SCMR 853) and Secretary, Ministry of Finance, Finance Division, Government of Pakistan and others v. Muhammad Anwar (2025 SCMR 153).

8. Jurisdiction is the foundational prerequisite for the validity of judicial action. An order passed without lawful jurisdiction is *coram non judice* and void *ab initio*; it neither creates rights nor extinguishes them. Jurisdiction cannot be conferred by consent, waiver or acquiescence. Since the Mansehra Court assumed

jurisdiction subsequent to the institution of proceedings at Lahore and without adhering to the mandate of Section 14, and further in circumstances where the minors were not shown to be ordinarily residing within its territorial limits at the relevant time, the ex parte order dated 05.01.2021 cannot operate as a bar to proceedings at Lahore. This position finds support from the judgments reported as Altaf Hussain and others v. Chief Settlement Commissioner, Pakistan and others (PLD 1965 Supreme Court 68), Ali Muhammad v. Hussain Bakhsh and others (PLD 1976 Supreme Court 37), Muhammad Sham v. Mushtaque Ahmed through Legal Heirs and others (1996 SCMR 856), Land Acquisition Collector, Nowshera and others v. Sarfaraz Khan and others (PLD 2001 Supreme Court 514), Mst. Imtiaz Begum v. Sheikh Azmat Ullah (PLD 1959 (W.P.) Lahore 750), Ghulam Hussain v. Settlement Commissioner (1983 CLC 2972), Messrs Sanghar Sugar Mills Ltd. v. Federation of Pakistan through Secretary, Ministry of Finance and others (1991 CLC 456), Shehnaz Bibi v. Muhammad Ikhtlaq Khan (1996 MLD 1060), Muhammad Ayub Khan Tanoli v. Secretary of Industries, Government of N.W.F.P., Peshawar and others (2004 CLC 1500) and Nazir Ahmad v. Imdad Hussain and others (2005 YLR 1096).

9. The learned Courts below have concurrently recorded findings that the minors were ordinarily residing within the territorial jurisdiction of Lahore at the time of institution of the guardian petition and that the assumption of jurisdiction was consistent with Section 9 of the Act. These findings are essentially factual, based on appraisal of evidence, and have not been demonstrated to suffer from misreading, non-reading of material evidence, or jurisdictional infirmity. Constitutional jurisdiction under Article 199 is not meant to reappraise evidence or substitute concurrent findings of fact unless the same are shown to be perverse or without lawful authority. No such defect has been established.

10. In view of the above discussion, the impugned order dated 11.04.2023 and the appellate judgment dated 19.07.2024 do not suffer from any illegality or jurisdictional defect warranting interference in constitutional jurisdiction.
11. For the foregoing reasons, the instant petition, being devoid of any merit, is accordingly **dismissed**. No order as to costs.

(Muhammad Sajid Mehmood Sethi)
Judge

Announced in open Court on _____.

Judge

APPROVED FOR REPORTING

Judge

Sultan/ A.H.S.